Software End User License Agreement

This Software End User License Agreement ("**Agreement**") is a binding agreement between you ("**End User**" or "**you**") and Fuzzy Audio LLC ("**Company**"). This Agreement governs your use of the [CLICK] software for desktop use on the macOS and Microsoft Windows operating systems (including all related documentation, the "**Application**"). The Application is licensed, not sold, to you.

BY CLICKING "I ACCEPT" (OR A SIMILAR BUTTON OR CHECKBOX) OR BY DOWNLOADING, INSTALLING, OR USING THE APPLICATION, YOU (A) ACKNOWLEDGE THAT YOU HAVE READ AND UNDERSTAND THIS AGREEMENT; (B) REPRESENT THAT YOU ARE 18 YEARS OF AGE OR OLDER/OF LEGAL AGE TO ENTER INTO A BINDING AGREEMENT; AND (C) ACCEPT THIS AGREEMENT AND AGREE THAT YOU ARE LEGALLY BOUND BY ITS TERMS. IF YOU DO NOT AGREE TO THESE TERMS, DO NOT CLICK "I ACCEPT" AND DO NOT DOWNLOAD, INSTALL, OR USE THE APPLICATION, AND DELETE IT FROM YOUR COMPUTER.

1. License Grant. Subject to the terms of this Agreement, Company grants you a limited, non-exclusive, and nontransferable license to:

   (a) download, install, and use the Application for your personal or commercial use on a single computer owned or otherwise controlled by you ("**Computer**") strictly in accordance with the Application's documentation; and

   (b) use the authentication key provided to you upon purchase or download solely to activate and unlock the Application on your Computer for your own use in accordance with this Agreement.

2. License Restrictions. Except as may be expressly permitted by applicable law or expressly authorized by the Application, you shall not:

   (a) copy the Application, except as expressly permitted by this license;

   (b) modify, translate, adapt, or otherwise create derivative works or improvements, whether or not patentable, of the Application;

   (c) reverse engineer, disassemble, decompile, decode, or otherwise attempt to derive or gain access to the source code of the Application or any part thereof;

   (d) remove, delete, alter, or obscure any trademark or any copyright, trademark, patent, or other intellectual property or proprietary rights notices from the Application, including any copy thereof;

   (e) rent, lease, lend, sell, sublicense, assign, distribute, publish, transfer, or otherwise make available the Application, or any feature or functionality of the Application, to any third party for any reason, including by making the Application

available on a network where it is capable of being accessed by more than one device at any time;

(f) use any robot, spider, or other automatic device, process, or means to access the Application for any purpose, including monitoring or copying any of the material on the Application;

(g) use any manual process to monitor or copy any of the material on the Application, or for any other purpose not expressly authorized in this Agreement, without Company's prior written consent;

(h) frame, mirror, or otherwise incorporate the Application or any portion of the Application as part of any other application, website, or service;

(i) use the Application in any manner that could disable, overburden, damage, or impair the Application or interfere with any other party's use of the Application; or

(j) remove, disable, circumvent, or otherwise create or implement any workaround to any copy protection, rights management, or security features in or protecting the Application.

3. Reservation of Rights. You acknowledge and agree that the Application is provided under license, and not sold, to you. You do not acquire any ownership interest in the Application under this Agreement, or any other rights thereto other than to use the Application in accordance with the license granted, and subject to all terms, conditions, and restrictions, under this Agreement. Company and its licensors and service providers reserve and shall retain their entire right, title, and interest in and to the Application, including all copyrights, trademarks, and other intellectual property rights therein or relating thereto, except as expressly granted to you in this Agreement.

4. Collection and Use of Information. The Application is designed to operate locally on your Computer. Except as necessary to activate or validate your authentication key, or as otherwise described in any applicable privacy policy made available by Company, the Application is not intended to collect, transmit, or store personal information or usage data from you or your Computer. By using the Application, you consent to Company’s collection and use of information as necessary for authentication key activation and validation, and as otherwise described in Company’s privacy policy.

5. Third-Party Frameworks and Acknowledgments. The Application is built using and incorporates certain third-party software frameworks. Portions of the Application are developed using technology of Steinberg Media Technologies GmbH and such portions are used under the MIT License. The Application also incorporates the JUCE framework, used under license from Raw Material Software Limited. All rights in and to such third-party frameworks are reserved to their respective owners. You agree to comply with any applicable terms and conditions of such third-party frameworks.

6. Geographic Restrictions. The Application is based in the state of [Colorado] in the United States. You acknowledge that access to or use of the Application may not be legal by certain persons or in certain countries. If you access or use the Application from outside the United States, you do so on your own initiative and are responsible for compliance with local laws.

7. Updates. Company may from time to time in its sole discretion develop and provide Application updates, which may include upgrades, bug fixes, patches, other error corrections, and/or new features (collectively, including related documentation, "**Updates**"). Updates may also modify or delete in their entirety certain features and functionality. You agree that Company has no obligation to provide any Updates or to continue to provide or enable any particular features or functionality. Updates may be made available to you through the applicable app store or by download from Company's website, and depending on your settings, either:

(a) the Application will automatically download and install all available Updates; or

(b) you may receive notice of or be prompted to download and install available Updates.

You shall promptly download and install all Updates and acknowledge and agree that the Application or portions thereof may not properly operate should you fail to do so. You further agree that all Updates will be deemed part of the Application and be subject to all terms and conditions of this Agreement.

8. Term and Termination.

(a) The term of Agreement commences when you [download/install] the Application and will continue in effect until terminated by you or Company as set forth in this 8.

(b) You may terminate this Agreement by deleting the Application and all copies thereof from your Computer.

(c) Company may terminate this Agreement at any time without notice if it ceases to support the Application, which Company may do in its sole discretion, or if you violate any of the terms and conditions of this Agreement.

(d) Company may also terminate this Agreement for convenience at any time upon notice to you, including by notice through the Application or to the email or account address associated with your purchase or download of the Application.

(e) Upon termination:

(i) all rights granted to you under this Agreement will also terminate; and

(ii) you must cease all use of the Application and delete all copies of the Application from your Computer.

(f) Termination will not limit any of Company's rights or remedies at law or in equity.

(g) You will not be entitled to a refund of any fees or amounts paid for the Application upon any termination or expiration of this Agreement.

9. Disclaimer of Warranties. THE APPLICATION IS PROVIDED TO END USER "AS IS" AND WITH ALL FAULTS AND DEFECTS WITHOUT WARRANTY OF ANY KIND. TO THE MAXIMUM EXTENT PERMITTED UNDER APPLICABLE LAW, COMPANY, ON ITS OWN BEHALF AND ON BEHALF OF ITS AFFILIATES AND ITS AND THEIR RESPECTIVE LICENSORS AND SERVICE PROVIDERS, EXPRESSLY DISCLAIMS ALL WARRANTIES, WHETHER EXPRESS, IMPLIED, STATUTORY, OR OTHERWISE, WITH RESPECT TO THE APPLICATION, INCLUDING ALL IMPLIED WARRANTIES OF MERCHANTABILITY, FITNESS FOR A PARTICULAR PURPOSE, TITLE, AND NON-INFRINGEMENT, AND WARRANTIES THAT MAY ARISE OUT OF COURSE OF DEALING, COURSE OF PERFORMANCE, USAGE, OR TRADE PRACTICE. WITHOUT LIMITATION TO THE FOREGOING, COMPANY PROVIDES NO WARRANTY OR UNDERTAKING, AND MAKES NO REPRESENTATION OF ANY KIND THAT THE APPLICATION WILL MEET YOUR REQUIREMENTS, ACHIEVE ANY INTENDED RESULTS, BE COMPATIBLE, OR WORK WITH ANY OTHER SOFTWARE, APPLICATIONS, SYSTEMS, OR SERVICES, OPERATE WITHOUT INTERRUPTION, MEET ANY PERFORMANCE OR RELIABILITY STANDARDS, OR BE ERROR-FREE, OR THAT ANY ERRORS OR DEFECTS CAN OR WILL BE CORRECTED.

SOME JURISDICTIONS DO NOT ALLOW THE EXCLUSION OF OR LIMITATIONS ON IMPLIED WARRANTIES OR THE LIMITATIONS ON THE APPLICABLE STATUTORY RIGHTS OF A CONSUMER, SO SOME OR ALL OF THE ABOVE EXCLUSIONS AND LIMITATIONS MAY NOT APPLY TO YOU.

10. Limitation of Liability. TO THE FULLEST EXTENT PERMITTED BY APPLICABLE LAW, IN NO EVENT WILL COMPANY OR ITS AFFILIATES, OR ANY OF ITS OR THEIR RESPECTIVE LICENSORS OR SERVICE PROVIDERS, HAVE ANY LIABILITY ARISING FROM OR RELATED TO YOUR USE OF OR INABILITY TO USE THE APPLICATION FOR:

(a) PERSONAL INJURY, PROPERTY DAMAGE, LOST PROFITS, COST OF SUBSTITUTE GOODS OR SERVICES, LOSS OF DATA, LOSS OF GOODWILL, BUSINESS INTERRUPTION, COMPUTER FAILURE OR MALFUNCTION, OR ANY OTHER CONSEQUENTIAL, INCIDENTAL, INDIRECT, EXEMPLARY, SPECIAL, OR PUNITIVE DAMAGES.

(b) DIRECT DAMAGES IN AMOUNTS THAT IN THE AGGREGATE EXCEED THE AMOUNT ACTUALLY PAID BY YOU FOR THE APPLICATION.

THE FOREGOING LIMITATIONS WILL APPLY WHETHER SUCH DAMAGES ARISE OUT OF BREACH OF CONTRACT, TORT (INCLUDING NEGLIGENCE), OR OTHERWISE AND REGARDLESS OF WHETHER SUCH DAMAGES WERE FORESEEABLE OR COMPANY WAS ADVISED OF THE POSSIBILITY OF SUCH DAMAGES. SOME JURISDICTIONS DO NOT ALLOW CERTAIN LIMITATIONS OF LIABILITY SO SOME OR ALL OF THE ABOVE LIMITATIONS OF LIABILITY MAY NOT APPLY TO YOU.

11. Indemnification. You agree to indemnify, defend, and hold harmless Company and its officers, directors, employees, agents, affiliates, successors, and assigns from and against any and all losses, damages, liabilities, deficiencies, claims, actions, judgments, settlements, interest, awards, penalties, fines, costs, or expenses of whatever kind, including reasonable attorneys' fees, arising from or relating to your use of the Application in violation of this Agreement or applicable law, or your breach of this Agreement.

12. Export Regulation. The Application may be subject to US export control laws, including the Export Control Reform Act and its associated regulations. You shall not, directly or indirectly, export, re-export, or release the Application to, or make the Application accessible from, any jurisdiction or country to which export, re-export, or release is prohibited by law, rule, or regulation. You shall comply with all applicable federal laws, regulations, and rules, and complete all required undertakings (including obtaining any necessary export license or other governmental approval), prior to exporting, re-exporting, releasing, or otherwise making the Application available outside the US.

13. Severability. If any provision of this Agreement is illegal or unenforceable under applicable law, the remainder of the provision will be amended to achieve as closely as possible the effect of the original agreement and all other provisions of this Agreement will continue in full force and effect.

14. Governing Law. This Agreement is governed by and construed in accordance with the internal laws of the State of Colorado without giving effect to any choice or conflict of law provision or rule. Subject to Section 19 (Mandatory Arbitration), any legal suit, action, or proceeding arising out of or related to this Agreement or the Application shall be instituted exclusively in the federal courts of the United States or the courts of the State of Colorado in each case located in the City and County of Denver. You waive any and all objections to the exercise of jurisdiction over you by such courts and to venue in such courts. Nothing in this Section limits or waives any rights you may have under mandatory consumer protection laws of your country or state of residence that cannot be waived by agreement, and to the extent such laws apply, they will prevail over this Section.

15. Limitation of Time to File Claims. ANY CAUSE OF ACTION OR CLAIM YOU MAY HAVE ARISING OUT OF OR RELATING TO THIS AGREEMENT OR THE APPLICATION MUST BE COMMENCED WITHIN ONE (1) YEAR AFTER THE CAUSE OF ACTION ACCRUES OTHERWISE SUCH CAUSE OF ACTION OR CLAIM IS PERMANENTLY BARRED, EXCEPT WHERE APPLICABLE LAW PROHIBITS SHORTENING THE LIMITATION PERIOD TO LESS THAN THE STATUTORY DEFAULT, IN WHICH CASE THE SHORTEST PERIOD PERMITTED BY SUCH LAW WILL APPLY.

16. Entire Agreement. This Agreement constitutes the entire agreement between you and Company with respect to the Application and supersedes all prior or contemporaneous understandings and agreements, whether written or oral, with respect to the Application.

17. Waiver. No failure to exercise, and no delay in exercising, on the part of either party, any right or any power hereunder shall operate as a waiver thereof, nor shall any single or partial exercise of any right or power hereunder preclude further exercise of that or any other right hereunder. In the event of a conflict between this Agreement and any applicable purchase or other terms, the terms of this Agreement shall govern.

18. Force Majeure. Company shall not be liable hereunder for any failure or delay in the performance of its obligations under this Agreement if such failure or delay is on account of causes beyond its control, including, but not limited to, labor disputes, civil commotion, war, fires, floods, inclement weather, governmental regulations or controls, public health related orders or quarantines, casualty, government authority, strikes, or acts of God, in which event Company shall be excused from its obligations for the period of the delay and for a reasonable time thereafter.

19. Mandatory Arbitration. Except for an action seeking injunctive relief or an action to enforce an arbitration award, any dispute, controversy, or claim arising out of or relating to this Agreement or the Application shall be resolved exclusively by binding arbitration administered by the American Arbitration Association ("AAA") in accordance with its Commercial Arbitration Rules then in effect. The arbitration shall be conducted by a single arbitrator and shall take place in Denver, Colorado. Judgment on the award may be entered in any court of competent jurisdiction. EACH PARTY WAIVES ANY RIGHT TO A JURY TRIAL OR TO HAVE A DISPUTE DECIDED BY A COURT, EXCEPT AS EXPRESSLY PROVIDED IN THIS SECTION. Nothing in this Section limits or waives any rights you may have under mandatory consumer protection laws of your country or state of residence that cannot be waived by agreement, and to the extent such laws apply, they will prevail over this Section

20. Survival. The provisions of this Agreement that by their nature should survive termination or expiration will survive, including, without limitation, Section 2 (License Restrictions), Section 3 (Reservation of Rights), Section 4 (Collection and Use of Information), Section 9 (Disclaimer of Warranties), Section 10 (Limitation of Liability), Section 11 (Indemnification), Section 12 (Export Regulation), Section 14 (Governing Law), Section 15 (Limitation of Time to File Claims), Section 16 (Entire Agreement), Section 19 (Mandatory Arbitration), and this Section.

21. Equitable Relief. You acknowledge and agree that a breach or threatened breach by you of any of your obligations under Section 2 (License Restrictions) or Section 3 (Reservation of Rights) would cause Company irreparable harm for which monetary damages would not be an adequate remedy, and that in the event of such breach or threatened breach Company will be entitled to seek equitable relief, including a restraining order, injunctive relief, specific performance, and any other relief that may be available from any court of competent jurisdiction, without any requirement to post a bond or other security, or to prove actual damages.

22. Assignment. You may not assign or transfer this Agreement or any of your rights or obligations hereunder, by operation of law or otherwise, without Company's prior written consent, and any purported assignment or transfer in violation of this Section is void. Company may freely assign or transfer this Agreement and any of its rights and obligations hereunder, in whole or in part, without your consent and without notice. This Agreement is binding upon and inures to the benefit of the parties and their permitted successors and assigns.

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